

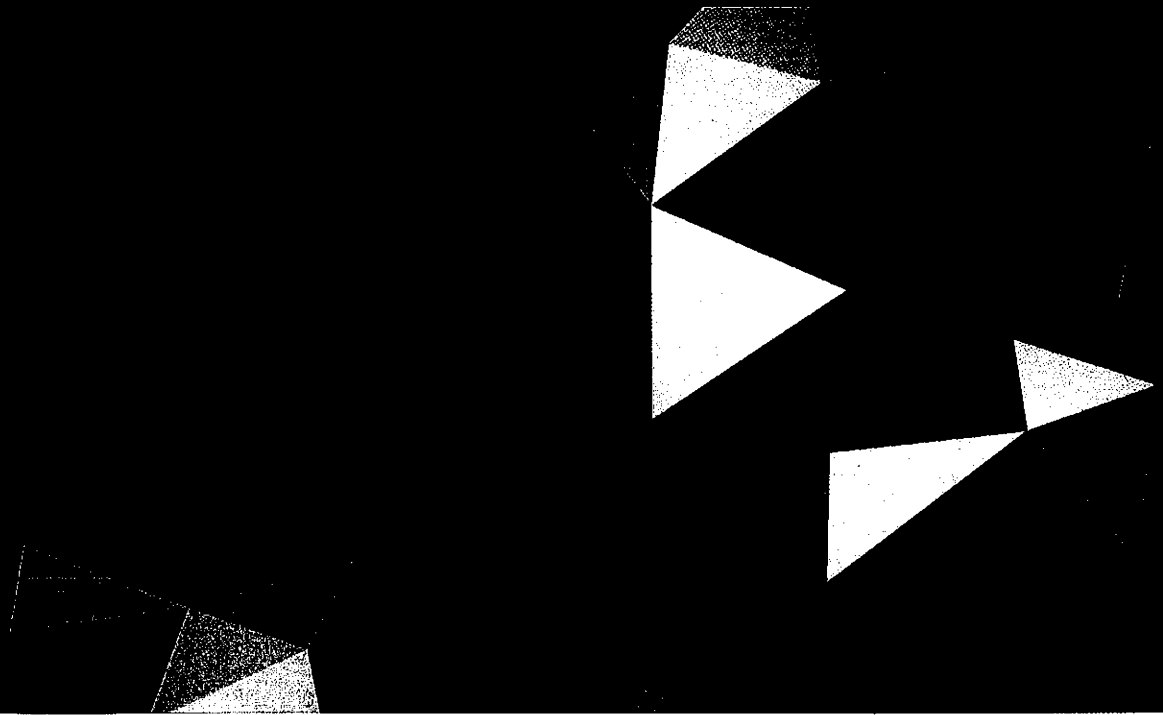
**INCLUSIVE EDUCATION FOR STUDENTS
WITH DISABILITIES SERIES**

INCLUSIVE EDUCATION

in a

STRENGTHS-BASED ERA

MAPPING THE FUTURE OF THE FIELD



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What Is Special Education Today?

Inclusive and Personalized Education

One refrain heard frequently in discussions of 21st-century learning is that the current education system was built for a bygone era; that it was built for "an economy and a society that no longer exists (National Education Association, 2016, p. 5). In the current global economic context, students can no longer be successful focusing only on core academic skills, they must learn how to communicate, to be creative, to engage in critical thinking, to solve problems, and to self-determine learning.

What one hears less frequently are discussions about these issues as they pertain to the education of learners with disabilities. After all, what is now titled the 2004 Individuals With Disabilities Education Act (IDEA) is approaching its 50th anniversary. It seems obvious that the context in which IDEA was written and has been implemented is no longer the context in which students with disabilities are educated and that the demands for postschool life today are very different from those half a century ago. Indeed, one can even suggest that the students who are educated under IDEA are different from the students for whom the law was originally written, or that how we understand disability has changed in the past 50 years.

It is, in our estimation, worth asking ourselves what, exactly, special education is today. Who do we teach now, and what and where should we be teaching them? Of course, the baseline answer to the "who do we teach" question is that, as special educators, we teach students who, by virtue of meeting criteria set by IDEA, are eligible to receive special education services.

But that seems to be an entirely unsatisfactory answer considering the rapid and systemic changes in education today. Perhaps this worked fine in an era of self-contained settings (although we would contend that it did not), but how does it work as we shift to an era of schoolwide applications, educating increasingly more learners in general education settings? Two of the presumptions in multitiered systems of supports (which we discuss in depth in Chapter 2) are that all students receive high-quality instruction in typical education settings and that, for students who have difficulty mastering content, what changes is the intensity, type, or quality of the instruction, rather than removing the student from the classroom to receive "special education" somewhere else. Logically, it seems to us, the special educator's role within inclusive classrooms and in multitiered support systems is shifting to providing expertise about specialized instructional strategies that might benefit any student who is having difficulty learning.

Questions about the role of special educators in inclusive contexts are hardly new, nor are seemingly endless discussions about where students with disabilities should be educated. What is new about special education today is that education as a whole is entering an era of personalized education. In this chapter, we provide a historical overview that situates what is meant by and required of special education in the context of a recent U.S. Supreme Court decision on the education of children with disabilities that raises the bar for the education of learners with disabilities. We close the chapter by discussing changing expectations for educating all students in the 21st century. In Chapter 2 we discuss issues pertaining to changing ways of understanding disability and strengths-based approaches to educating learners with disabilities that also help us to answer the question, What is special education today?

IDEA and the Least Restrictive Environment

To understand what is meant by *special education* and to address the "who" and "where" questions, let's begin at the beginning, with the passage of Public Law 94-142, then titled the Education for All Handicapped Children Act (EHA), in 1975. Within this historical context, the question of "who we teach" is straightforward. Although the disability category areas have expanded, EHA and IDEA define students who are eligible for special education the same way, based on meeting the dual criterion of (a) being identified as a child "with" one of the disabilities

categorized in the law (b) who, by virtue of that disability, requires special education to succeed in school. In Chapter 2 we discuss in more depth the standards set for succeeding and the assumptions associated with a child "having" a "disability," but for now, let's leave it here: children who have been identified (through a multidisciplinary, nondiscriminatory evaluation process) as having an eligible disability and who require special education to learn constitute the population of who, historically, special educators teach.

This leads us to a logical next question: if eligible children require special education, what exactly is special education? EHA and, subsequently, IDEA, define *special education* as "specially designed instruction" (regulations to IDEA, 34 C.F.R. §300.39 (a)(1)). *Specially designed instruction* is in turn defined as

adapting, as appropriate to the needs of an eligible child under this part, the content, methodology, or delivery of instruction—

- (i) To address the unique needs of the child that result from the child's disability; and
- (ii) To ensure access of the child to the general curriculum, so that the child can meet the educational standards within the jurisdiction of the public agency that apply to all children (§300.39 (b) (3); <https://sites.ed.gov/idea/reg/b/a/300.39>)

So, there you have it. Special education means specially designed instruction that adapts *content, methodology, or delivery of instruction* to address the *unique* learning needs that result from a child's disability and that ensures access to the general education curriculum.

What "special education" does *not* refer to is a place where students receive instruction (special education room, special education class, etc.), even though it is frequently used as such.

Special education, as defined in IDEA, has never been a place; it is the delivery of specialized instruction or content. To examine the

question of where specially designed instruction occurs, we need to consider two elements of EHA/IDEA: (a) the requirements for the provision of supplementary aids and services and (b) the least restrictive environment (LRE) requirements.

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Supplementary Aids and Services

Special education (as specially designed instruction) refers to adaptations to delivery of instruction, content, and methodology. EHA and IDEA also require the provision of supplementary aids and services, which the IDEA regulations (§300.42) define as

aids, services, and other supports that are provided in regular education classes, other education-related settings, and in extracurricular and nonacademic settings, to enable children with disabilities to be educated with nondisabled children to the maximum extent appropriate in accordance with §§300.114 through 300.116. (<https://sites.ed.gov/idea/regs/b/a/300.42>)

These aids, services, and other supports refer to a wide array of strategies, adaptations, and modifications that are distinct from the adaptations to instruction, content, and methodology comprising specially designed instruction. That is, supplementary aids and services refer to noninstructional modifications and supports/services that support learning. Table 1.1 provides domains pertaining to the purposes of, and examples of supplementary aids and services.

TABLE 1.1 Supplementary Aids and Services Domains, Purposes, and Examples

DOMAIN	PURPOSE	EXAMPLES
School buildings and facilities	Ensure that all physical spaces are designed to ensure physical, sensory, and cognitive access to enable children with disabilities to be educated with nondisabled children, be involved with and progress in the general education curriculum, and address their unique learning needs	• Elevators • Wide doors • Curb cuts and ramps • Braille and cognitively accessible signage • Accessible restrooms, cafeterias, and other noninstructional facilities

Classrooms and instructional spaces	Ensure that all instructional spaces are designed to ensure physical, sensory, and cognitive access to enable children with disabilities to be educated with nondisabled children, be involved with and progress in the general education curriculum, and address their unique learning needs	• Seating arrangements • Classroom arrangement • Types of seating • Acoustics • Lighting
Instructional technology and equipment	Provide technology and educationally-relevant equipment to enable children with disabilities to be educated with nondisabled children, be involved with and progress in the general education curriculum, and address their unique learning needs	• Computers, tablets, and other educational devices and software • Assistive technology • Augmentative communication device • Calculator • Word processor
Instructional materials and content presentation	Ensure that all instructional materials and the presentation of educational content are universally designed to enable children with disabilities to be educated with nondisabled children, be involved with and progress in the general education curriculum, and address their unique learning needs	• Digital talking books • Advance organizers • Multimedia presentations
Schedules and task modifications	Provide adaptations and modifications to educational schedules, activities, and assessments to enable children with disabilities to be educated with nondisabled children, be involved with and progress in the general education curriculum, and address their unique learning needs	• Extended time • Scribe • Note taker • Oral presentation • Modified reading level • Rest breaks

continued

TABLE 1.1 *continued*

DOMAIN	PURPOSE	EXAMPLES
People	Provide teacher, paraeducator, and peer supports that enable children with disabilities to be educated with nondisabled children, be involved with and progress in the general education curriculum, and address their unique learning needs	• Teacher roles • Paraeducator roles • Peers and classmates roles • Time for collaboration and planning • Training and professional development

So, *special education* refers to adaptations to instruction, methodology, and content; *supplementary aids and services* refer to adaptations and modifications to the context that are distinct from the adaptations to instruction, content, and methodology. IDEA also requires delivery of related services. IDEA (§300.34 (a)) defines related services by, basically, listing a lot of such services:

Related services means transportation and such developmental, corrective, and other supportive services as are required to assist a child with a disability to benefit from special education, and includes speech-language pathology and audiology services, interpreting services, psychological services, physical and occupational therapy, recreation, including therapeutic recreation, early identification and assessment of disabilities in children, counseling services, including rehabilitation counseling, orientation and mobility services, and medical services for diagnostic or evaluation purposes. Related services also include school health services and school nurse services, social work services in schools, and parent counseling and training. (<https://sites.ed.gov/idea/regs/b/a/300.34>)

The key to whether students are eligible for related services is whether, as stated in the definition, such services are "required to assist a child with a disability to benefit from special education." We return to the issue of benefit shortly.